

Tentative Rulings and Resolution Review Hearings
August 10, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

BOONE VS. GALVAN, ET AL.

CASE NUMBER: 24CV-0205681

An Order to Show Cause Re: Dismissal (“OSC”) issued on July 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel, for failure to serve and failure to obtain default judgment pursuant to CRC 3.110(b) and (h). No response to the OSC has been filed. Sanctions have been imposed previously on several occasions and have not been paid. This matter has been continued multiple times to permit Plaintiff to cure the defects. Despite the imposition of sanctions and multiple continuances, Plaintiff has failed to move the case forward. It appears no lesser sanctions would be effective to prompt compliance with the rules of court. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

DOTSON VS. COUNTY OF SHASTA, ET AL.

CASE NUMBER: 26CV-0210377

Tentative Ruling on Demurrer: Defendants demur to each cause of action on the grounds that the Complaint fails to allege facts sufficient to constitute a cause of action against defendants under CCP 430.10(e). The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Renee Belcastro establishes good faith attempts at compliance with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Plaintiff’s Complaint alleges six causes of action: 1) 42 USC § 1983; 2) 42 USC § 12132; 3) Gov. Code § 815.6; 4) Dependent Adult Abuse WIC § 15610.23; 5) Retaliation 42 USC § 1983; 6) Intentional Infliction of Emotional Distress. Each cause of action simply recites some or all of the elements which must be pled to state a claim, but does not plead any facts in support of each element. This is insufficient to state a claim against any of the Defendants.

42 USC § 1983: To state a claim under this section, Plaintiff must plead deprivation of a federal right, by a person acting under color of state law. “The United States Supreme Court has carved out a limited area of direct municipal responsibility “if the deprivation of rights was caused by an official policy or custom of the county, set by the county’s lawmakers or by an official who speaks

with final policymaking authority for the county.”” *Choate v. County of Orange* (2000) 86 Cal.App.4th 312, 328. The Complaint alleges “Plaintiff possessed protected property interests in public benefits. Defendant deprived Plaintiff of those interests...” Plaintiff does not identify any federal right. Plaintiff does not plead any facts at all in support of the allegation that he was deprived of a federal right. The cause of action simply recites the elements without any supporting factual allegations. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

ADA Title II - 42 USC § 12132: “In order to prove a claim for discrimination under title II of the ADA, a plaintiff must show: (1) that he is a qualified individual with a disability; (2) he was either excluded from participation in or denied the benefits of a public entity's programs, benefits or services; and (3) the public entity's conduct occurred by reason of his disability. (42 U.S.C. § 12132).” *Black v. Department of Mental Health* (2000) 83 Cal.App.4th 739, 749. Again, the Complaint states these elements without alleging any facts. Plaintiff does not identify what benefits he was denied. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Gov. Code § 815.6: This section provides “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” The Complaint alleges “Defendants were subject to mandatory duties imposed by statute and regulation governing eligibility determinations, fair hearing procedures, and maintenance of accurate beneficiary records.” The pleading does not identify any statute which imposes a duty. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Dependent Adult Abuse: To establish a basic claim for abuse of a dependent adult, a plaintiff must show that the victim was a dependent adult and was subjected to “abuse.” Cal Wel & Inst Code § 15610.07, *Nichols v. Alghannam*, 118 Cal. App. 5th 726. Statutory abuse includes physical abuse, neglect, abandonment, isolation, abduction, or other treatment resulting in physical harm, pain, or mental suffering. Cal Wel & Inst Code § 15610.07. It also encompasses financial abuse or the deprivation of necessary goods or services by a care custodian to avoid physical harm or mental suffering. Cal Wel & Inst Code § 15610.07. A custodial or caretaking relationship is an absolute prerequisite; the Act does not apply to casual or limited interactions. *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal. 4th 148. The Complaint alleges “Governmental records reflect repeated reports concerning Plaintiff’s vulnerability, behavioral health status and allegations of abuse.” The Complaint does not provide any further factual allegations or detail. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

Retaliation - 42 USC § 1983/ADA: The same requirements apply as discussed with respect to the First Cause of Action. Again, the Complaint alleges Plaintiff engaged in protected activity but does not specify what that protected activity is. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to

amend for failure to state facts sufficient to constitute a cause of action.

Intentional Infliction of Emotional Distress: To state a claim, Plaintiff must plead extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; the plaintiff's suffering of severe or extreme emotional distress; and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. *Christensen v. Superior Court* (1991) 54 Cal. 3d 868. Again, the Complaint only makes the bare allegation that "Defendants' conduct was extreme and outrageous." No facts regarding any particular conduct are alleged. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

The Demurrer is **SUSTAINED** with leave to amend as detailed above. Plaintiff is granted 15 days leave to amend from notice of entry of order. The proposed order will be modified.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion to Compel Further Responses to Discovery: Plaintiff moves to compel Defendant to provide further responses and production of documents to Requests for Production of Documents, Set Two Nos. 19, 23, 25-29, and 32. Defendant opposes the motion.

On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet and confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declaration of May T. To establishes compliance with the meet and confer requirements.

RPD 19 – Documents relating to communications between Holt and Aggrieved Employees ("AEs") relating to this action. The Motion does not address this RPD. No evidence or argument establishing good cause is presented as required by CCP 2031.310(b)(1). The Separate Statement states only that Plaintiff believes the documents are reasonably calculated to lead to the discovery of admissible evidence, but does not explain why and does not "set forth specific facts showing good cause justifying the discovery sought by the demand." CCP 2031.310(b)(1). Therefore, Plaintiff has failed to carry its burden to establish good cause for further responses. No further production is ordered.

RFD 23 – All GPS data of Holt's company vehicles driven by AEs for work purposes during the relevant time period. Defendant objects on several grounds including that the data is cumulative and not relevant, that *Belaire-West* notice is required, that the request is unduly burdensome, that the documents are not kept in the ordinary course of business, and that Defendant does not own, control, or have custody of the records.

Defendant argues that AEs must receive notice and opportunity to opt-out through the *Belaire-West* notice procedure. Defendants argue that the protective order and redaction of identifying information is insufficient, because employee IDs already produced to Plaintiff could be used to cross-reference the de-identified information.

“Whether a legally recognized privacy interest exists is a question of law, and whether the circumstances give rise to a reasonable expectation of privacy and a serious invasion thereof are mixed questions of law and fact. (Ibid.) “ ‘If the undisputed material facts show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law.’ ” *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 558. “As a starting point, the claimant must possess a “legally protected privacy interest.” (*Hill, supra*, 7 Cal.4th at p. 35.) Next, the claimant must have a reasonable expectation of privacy under the particular circumstances, including the customs, practices, and physical settings surrounding particular activities. (*Id.* at pp. 36–37.) Third, the invasion of privacy must be serious in nature, scope, and actual or potential impact; trivial invasions do not create a cause of action. (*Id.* at p. 37.) If a claimant meets these criteria, then the court must balance the privacy interest at stake against other competing or countervailing interests. (*Pioneer, supra*, 40 Cal.4th at pp. 370–371.)” *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 558–559.

Here, the data sought includes “All GPS data of Holt of CA’s company vehicles that were driven by Aggrieved Employees for work purposes during the relevant time period.” The parties appear to agree that the GPS is on and recording at all times, and that employees drove these vehicles both during work hours and off the clock. Therefore, this dataset would include GPS data recording employee whereabouts both on and off the clock. This would include locations of home addresses and potentially other locations implicating important privacy interests such as medical appointments or other personal time activities. As such, employees have a reasonable expectation of privacy under the circumstances, and the invasion of privacy is not trivial. This is especially true because Plaintiff already has in their possession a list of employees with contact information which could be used to cross-reference any datasets using employee IDs. In this circumstance the Court finds that the use of the protective order and redactions is insufficient. Notice and the opportunity to opt-out is required.

As to the maintenance and control of this data, the evidence before the court is that third parties Verizon and Samsara collect, own and possess these data sets. Therefore, it is incumbent upon Plaintiff to subpoena the records from those third parties if necessary. No further production from Defendant is ordered.

RFD 25 through 29 – Manuals, instructions, policies or guidelines that were provided to AEs regarding the recording of time worked in the DBS and Unicorn systems, documents describing the operations of these systems, and documents reflecting training regarding these systems. Defendant has represented that it has produced all responsive documents and that no further documents are being withheld. Plaintiff’s Reply argues that PMQ Lightfoot testified that there are written policies provided to employees to operate the Unicorn and DBS system but that she does not know if these policies were provided to Plaintiff’s counsel during discovery. To the extent such written policies exist and have not been produced, they are ordered to be produced. If no further written policies on how to use DBS and Unicorn exist, Defendant is ordered to confirm this fact in a supplemental verified response within 10 days of notice of entry of order.

RFD 32 – Documents reflecting any discipline or corrective action administered to any AE during the relevant time period relating to timekeeping. The Motion does not appear to address this RPD. The Separate Statement argues there is good cause for further production because these records are relevant to whether Plaintiff stole company time, whether Plaintiff and AEs recorded all

compensable time, whether they were properly paid, and whether Defendant implemented a uniform policy regarding timekeeping and billing its customers in the DBS system.

First, whether there was a uniform policy in place is addressed in other RPDs and is not responsive to this RPD. Disciplinary or corrective action records related to AE's timekeeping would also implicate employees' personnel files and their privacy interests therein. As discussed above, the protective order and redactions would be insufficient in this case to de-identify data because of the employee list already in Plaintiff's possession. At minimum, a *Belair-West* notice would be required, and additionally, Plaintiff would need to establish how this information could be adequately protected given the employees' privacy rights in their personnel files. No further production is ordered.

Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, neither party has been wholly unsuccessful. Both sides have substantial justification for portions of their motion and oppositions, respectively, such that the imposition of sanctions would be unjust. No sanctions will be imposed.

Plaintiff's Motion to Compel Further Responses to Demand for Production is **GRANTED** in part as discussed above with respect to RPDs 25 and 26. No sanctions are imposed. The proposed order will be modified accordingly.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied.

This matter first came on for hearing on July 6, 2026. The minor's father appeared and stated his objection to the name change. The Court instructed the father to file his objection with the Court and continued hearing to August 10, 2026. No objection was filed, however, the father filed a Witness List and five declarations from others. While the father has not filed a written objection, it is clear that the father is objecting to the Petition. The father will need to file a written objection that provides the reasons that the Petition is opposed.

CCP § 1278.5 provides "In any proceeding pursuant to this title in which a petition has been filed to change the name of a minor, and both parents, if living, do not join in consent, the court may deny the petition in whole or in part if it finds that any portion of the proposed name change is not in the best interest of the child." "The controlling consideration in determining whether a change in a child's surname should be ordered against the objection of one of the parents, is the welfare of the child [citations]." *In re Marriage of Schiffman* (1980) 28 Cal.3d 640, 645. Courts are to consider factors including the length of time that the child has used a surname, the effect of a name change on preservation of the father-child relationship, the strength of the mother-child relationship, the identification of the child as a part of a family unit, and any confusion, embarrassment or discomfort the child may experience by bearing a surname different from the rest of their household. *See id.*

The Court intends to set a hearing in this matter. An appearance by the mother and father is necessary to select a hearing date. The mother should be prepared to discuss whether the minor prefers to attend the hearing or submit a written declaration (Judicial Council Form MC-030).

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.

CASE NUMBER: 25CV-0208108

Tentative Ruling on Motion to Compel Production of Documents and Request for Special Sanctions: Plaintiffs seek an Order requiring Defendant, Helix Environmental Planning, Inc., to respond to Request for Production, Set One. Plaintiffs also seek monetary sanctions. Defendant does not oppose the motion to compel responses but does oppose monetary sanctions.

Plaintiffs' Request for Judicial Notice. Plaintiffs' request the Court take judicial notice of the Notice of Entry of Order filed on July 24, 2026, regarding Plaintiffs' prior motion to compel further responses and a transcript from the hearing date of June 8, 2026, regarding the motion to compel further responses. The request is granted pursuant to Evid. Code § 452(d).

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Plaintiffs have provided evidence that Defendant was served by email on May 27, 2026, with Plaintiffs' Request for Production, Set One. No responses were provided within the time required. Additionally, Plaintiffs' counsel sent an email to Defendant requesting responses without objections no later than July 3, 2026. Defendant does not dispute that responses have not been provided. Responses to Plaintiffs' Request for Production, Set One, are required.

Sanctions. Plaintiffs request monetary sanctions pursuant to CCP §§ 2031.300(c) and 2023.030(a). Sanctions are mandatory absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Defendant has failed to show substantial justification for the delay in providing responses to the discovery request.

Plaintiffs request attorney fees for bringing this motion in the amount of \$875.00. The Court finds the hourly rate requested and time spent reasonable, with the exception of the time needed to attend the hearing on this motion. A substantially similar motion was filed regarding a separate defendant for the same hearing date and each motion requests an hour of time to attend the hearing. Two hours to attend the hearing is not reasonable. The Court will reduce this request by one half-hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Helix Environmental Planning, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by

Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

Tentative Ruling on Motion to Compel Production of Documents and Request for Special Sanctions: Plaintiffs seek an Order requiring Defendant, Whitney Environmental Consulting, Inc., to respond to Request for Production, Set Two. Plaintiffs also seek monetary sanctions. Defendant does not oppose the motion to compel responses but does oppose monetary sanctions.

Plaintiffs' Request for Judicial Notice. Plaintiffs' request the Court take judicial notice of the Notice of Entry of Order filed on July 24, 2026, regarding Plaintiffs' prior motion to compel further responses and a transcript from the hearing date of June 8, 2026, regarding the motion to compel further responses. The request is granted pursuant to Evid. Code § 452(d).

Defendant's Request for Judicial Notice. Defendant requests the Court take judicial notice of the Declaration of William Sluss in support of Defendants Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc.'s Opposition to Sanctions filed on June 8, 2026. The request is granted pursuant to Evid. Code § 452(d).

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Plaintiffs have provided evidence that Defendant was served by email on May 27, 2026, with Plaintiffs' Request for Production, Set Two. No responses were provided within the time required. Additionally, Plaintiffs' counsel sent an email to Defendant requesting responses without objections no later than July 3, 2026. Defendant does not dispute that responses have not been provided. The Court notes that Defendant argues it is not a proper defendant and should be dismissed because the corporation dissolved in December of 2019 and the statutory time to sue the former shareholders has lapsed. This issue has not been properly brought before the Court, therefore responses to Plaintiffs' Request for Production, Set Two, are required.

Sanctions. Plaintiffs request monetary sanctions pursuant to CCP §§ 2031.300(c) and 2023.030(a). Sanctions are mandatory absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Defendant has failed to show substantial justification for the delay in providing responses to the discovery request.

Plaintiffs request attorney fees for bringing this motion in the amount of \$875.00. The Court finds the hourly rate requested and time spent reasonable, with the exception of the time needed to attend the hearing on this motion. A substantially similar motion was filed regarding a separate defendant for the same hearing date and each motion requests an hour of time to attend the hearing. Two hours to attend the hearing is not reasonable. The Court will reduce this request by one half-

hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Whitney Environmental Consulting, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Deposition: Defendant FCA US LLC and Steward Chrysler Dodge Jeep Ram dba Stewart Dealerships move for an order compelling Plaintiff Nicole Shannon to appear for and proceed with her deposition and to produce the documents described in the deposition notice. The Motion is properly noticed and is unopposed. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Defendant has established proper service of a deposition notice to Plaintiff on June 11, 2026. No objections were served. Defendant has also established that on the noticed date, June 23, 2026, Plaintiff did not appear for the deposition and did not produce any documents. Defendant is entitled to the relief requested.

Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of Defendant requests sanctions of \$3,275.10 consisting of 5.8 attorney hours at \$450 per hour, plus costs of \$60 for the filing fee and \$605.10 for the court reporter. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. The costs will be awarded. Total sanctions are \$2,185.10.

The Motion to Compel is **GRANTED**. Sanctions of \$2,185.10 are imposed in favor of Defendants against Plaintiff. A proposed order has been lodged and will be modified.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Initial Disclosures and for Sanctions: Plaintiff Nicole Shannon moves for an order compelling Defendant FCA US LLC to produce all documents required under Code of Civil Procedure section 871.26(h). Plaintiff also seeks sanctions of

\$2,500.00 pursuant to CCP § 871.26(j)(1). Plaintiff's Notice of Motion indicates that "Plaintiffs Nicole Shannon and Giovanna Bonds" move for such an order. However, the Court has no record of Giovanna Bonds as a Plaintiff in this action. Accordingly, this ruling concerns only the current active Plaintiff in this matter, which is Nicole Shannon. The Motion is unopposed.

This lemon law case arises from Plaintiffs' purchase of a 2018 Jeep Grand Cherokee, which Plaintiff alleges FCA failed to repair within a reasonable number of attempts. This case was filed on March 20, 2025 and is subject to the newly enacted procedural framework under Code of Civil Procedure sections 871.20 through 871.30.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

Defendants filed their Answer on January 20, 2026 (the moving papers incorrectly state that the Answer was filed on January 16, 2026). Pursuant to CCP § 871.26(b), this established a deadline of March 22, 2026 for initial disclosures. Plaintiff's Motion alleges that FCA "has not provided verified responses, has not disclosed its search methodology, and has not supplemented its production in any meaningful way." (Mot. 6:2-4.) Plaintiff neglects to inform the Court when initial disclosures were received, but it can be inferred that they were timely served as Plaintiff argues only that FCA is in "material noncompliance," by failing to provide verifications or supplemental responses.

Plaintiff requests an order compelling Plaintiff to serve verifications. CCP § 871.26 does not require verifications. Plaintiff also requests an order compelling supplemental production of various documents including a "DealerCONNECT" record, "AutoPay claims and Trouble Not Found diagnostic claims," and "warranty claims paid under the 08-19-XX-40 module reset LOP series." In addition, Plaintiff seeks an order compelling verifications for various categories of documents for which some production has apparently already been made, including TSBs, recalls, and service manuals. Plaintiff further seeks an order requiring that Defendant disclose the search methodology and custodians consulted in conducting the search. Simply put, none of the requests listed above are part of the initial disclosures required by CCP § 871.26(h). That section sets forth a detailed list of what a defendant or manufacturer must provide within 60 days of filing its answer. On this record, it appears that Defendant has complied.

The Motion is **DENIED**. The proposed order will be modified accordingly.

9:00 a.m. Review Hearings

ALVAREZ- HERNANDEZ VS. MENLOVE, ET AL.

CASE NUMBER: 25CV-0207463

This matter is on calendar for status of service on Defendant Menlove. On April 24, 2026, the Court granted an order to serve Defendant Menlove by publication. No proof of service by publication has been filed. An appearance is necessary on today's calendar to provide a status of service.

ASHLEY VS. COLBERT, ET AL.

CASE NUMBER: 25CV-0208242

This matter is on calendar for status of mediation and trial setting. Plaintiff and Defendants both filed status statements requesting additional time to allow mediation to proceed prior to trial setting. The request is granted. Today's hearing is continued to **Monday, November 16, 2026 at 9:00 a.m. in Department 64** for status of mediation and trial setting. No appearances are necessary on today's calendar.

BLOXHAM, ET AL. VS. GILEAD SCIENCES, INC

CASE NUMBER: 23CV-0201846

This matter is on calendar for review regarding status of Judicial Council Coordination Proceeding No. 5043. The Court received Notice of coordination and stay on December 6, 2023. In December of 2024, the parties informed this Court via a Joint Case Status Report that the matter is on appeal before the Supreme Court of California. No updated Status Report has been filed. An appearance is necessary on today's calendar to provide a status of the case. Going forward, a joint status statement filed at least 5 days prior to the review hearing will generally obviate status appearances.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANSAND SUPPORT

CASE NUMBER: CVCV20-0194615

This matter is on calendar for review regarding distribution of settlement funds. The Court is in receipt of a Declaration of Taylor Mitzner on behalf of the Settlement Administrator confirming the distribution of funds pursuant to the Court's Order. The Settlement Administrator is directed to remit all uncashed funds to the State Controller. The Settlement Administrator is directed to file a further declaration confirming they have done so. Today's review hearing is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 64** for review regarding final distribution of settlement funds. If the required declaration is filed at least five days prior to the hearing, no appearances will be necessary. No appearances are necessary on today's calendar.

DUNCAN VS. DAY, ET AL.

CASE NUMBER: 25CV-0208883

This matter is on calendar for review regarding status of service. Plaintiff has filed a detailed status report regarding efforts to locate additional heirs of Plaintiff. It is unclear why this prevents the current Plaintiff, Kevin Marshall, as successor in interest to Abrey Duncan, from timely serving the named Defendants. An appearance is necessary on today's calendar to discuss status of service.

JAMES VS. GERLINGER FOUNDRY AND MACHINE WORKS INC.

CASE NUMBER: 25CV-0206862

This matter is on calendar for review regarding status of settlement. The parties have filed a joint status statement indicating that the matter has settled in principle and request a continuance to finalize the agreement and seek court approval. Today's hearing is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 64** for review regarding status of settlement. No appearances are necessary on today's calendar.

JEFFERSON CAPITAL SYSTEMS, LLC VS. ZUPAN

CASE NUMBER: 25CVG-01952

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on February 10, 2026 indicating the matter would be dismissed no later than August 13, 2027. The matter is continued to **Monday, August 23, 2027 at 9:00 a.m. in Department 64** for

status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

This matter is on calendar for review regarding Status of Stipulation and Order, Responsive Pleadings, Plaintiff's Amended Complaint and Corrections for Parties to be Dismissed.

On June 17, 2026, the Court entered an Order on stipulation of the parties that the Second Amended Complaint filed May 4, 2026 is the operative complaint. Defendants were to file responsive pleadings within 30 days of notice of entry of order. On June 18, 2026 Plaintiff dismissed Defendants Don Davis Towing, Shasta Lake Sheriffs Department, and City of Shasta Lake.

The remaining Defendants are California Towing and Transport, City of Redding, and County of Shasta (note that the SAC does not name Redding Police Department or Shasta County Sheriff's Office as Defendants). City of Redding and Redding Police Department filed a Demurrer on July 24, 2026 which is set for hearing on August 31, 2026. County of Shasta and Shasta County Sheriff's Department filed an Answer on July 27, 2026. The Court does not have record of a responsive pleading to the Second Amended Complaint from California Towing and Transport, Inc.

Defendant City of Redding has filed a Status Statement requesting the Court admonish Plaintiff regarding deficient service. Defendant County of Shasta filed a Notice of Related Case and a Status Statement requesting today's hearing be continued to August 31, 2026 to coincide with the Defendant City of Redding's Demurrer. Appearances are necessary on today's calendar to discuss the status of the case.

MCDONALD VS. JOHNSON & JOHNSON, ET AL

CASE NUMBER: CVPM18-0190511

This matter is on calendar for review regarding status. This litigation was coordinated in Los Angeles County Superior Court under JCCP Order 4872. No status statement has been filed to provide the Court with a status of the coordinated proceeding. The parties are ordered to appear to provide the Court with a status. Going forward, a joint status statement filed at least 5 days prior to the review hearing will generally obviate status appearances.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

CASE NUMBER: 23CV-0203137

This matter is on calendar for review regarding status of Plaintiff's successor-in-interest and default judgment. On July 6, 2026, the Court granted Plaintiff's motion to substitute successor in interest and granted 20 days leave to file an amended complaint reflecting the substitution. No amended complaint has been filed. No status statement has been filed. An appearance is necessary on today's calendar to provide a status.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. APPROXIMATELY \$124,000 U.S. CURRENCY, ET AL.

CASE NUMBER: 24CV-0205746

This matter is on calendar for status. A Claim Opposing Forfeiture was filed by real party in

interest Xay Va Vang on August 14, 2024. A Petition for Forfeiture in Rem was filed by the People on September 30, 2024. An appearance is necessary to provide a status of the underlying criminal matter.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$50,000.00 U.S. CURRENCY
CASE NUMBER: 25CV-0208575

This matter is on calendar for review regarding status. The People filed a Petition for Forfeiture in Rem on August 19, 2025. Claimant David Vue filed a Claim Opposing Forfeiture on August 29, 2025. An appearance is necessary to provide a status of the underlying criminal matter.

TOAL VS. WALMART INC., ET AL.
CASE NUMBER: 25CV-0208675

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than March 9, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

WU VS. HERZOG
CASE NUMBER: 25CV-0208538

This matter is on calendar for review regarding status. On June 12, 2026, the Court executed an Order upon stipulation of the parties setting aside the clerk's entry of default as to Defendant Matthew Herzog. The Stipulation had provided 30 days' leave for Defendant to file his answer. No answer has been filed. An appearance is necessary on today's calendar to discuss status of the case.